

Court No. - 32

Case :- WRIT - C No. - 11598 of 2018

Petitioner :- Shyam Kumar

Respondent :- Madhyanchal Vidyut Vitaran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Udit Chandra

Counsel for Respondent :- Kapil Dev Singh Rathore

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Heard learned counsel for the petitioner and Shri S.S. Yadav holding brief of Shri K.D.S. Rathore, learned counsel for respondent no. 2.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the demand notice dated 24.11.2017 of Rs.53,37,347/- issued in his name as well as final assessment order dated 09.03.2018.

Learned counsel appearing for the petitioner has invited our attention towards the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified. However, thereafter, the respondents proceeded to make final assessment, but since no notice or opportunity of any kind was given to the petitioner and the provisional assessment did not contain the date, time and place, therefore, the final assessment is biased in law.

From the perusal of the provisional assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and, in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in **Ashok Kumar and others Vs. State of U.P. & Ors., 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs.53,37,347/-. The notice also does not specify the date and time for hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with

law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned demand notice dated 24.11.2017 as well as final assessment order dated 09.03.2018 are hereby quashed. The proceedings for fresh assessment shall be carried out by the respondents in the light of observations made in **Ashok Kumar** (supra) and the procedure prescribed within a period of three weeks from the date of production of a certified copy of this order.

Order Date :- 30.3.2018

VKS